

Never-Filed Defective Petition Missing Essential Materials, Trial-Judge Copy, and Respondent Service

United States Court of Appeals for the Fourth Circuit

In re Cinder Lake Health Network, Inc., Petitioner

Related district action: *Rhea Calder v. Cinder Lake Health Network, Inc.*

Docket: SYN-CA4-26-WR-4401-CF-DEFICIENCY-NEVER-FILED

Document code: B01

Hypothetical date: 2026-04-01

Petition caption

Cinder Lake uses a materially conforming caption and asks for relief from the March 25 discovery order, but omits essential materials, respondent service, and the trial-judge-copy certification.

The caption identifies Cinder Lake as petitioner, Rhea Calder as the real party in interest, and the originating district action. It requests an original writ under Rule 21 and provides the district docket number. The caption itself supplies the parties and originating court needed to understand who seeks relief and against which order.

Relief stated

The draft requests vacatur of the categorical-waiver and complete-production provisions and remand for item-specific review, but does not attach the order containing those paragraphs.

The prayer is stated with enough precision to identify the requested disposition and distinguishes protected production from a blanket related-discovery bar. It asks the court to vacate categorical waiver and complete production, remand for document-specific review, and preserve ordinary factual discovery. The draft describes the challenged provisions but includes no appendix reproducing their text.

Questions stated

The draft asks whether the response letter disclosed protected content, whether the seven-day production command defeats later review, and what discovery may continue after narrow relief.

Those questions cover the necessary procedural and merits subjects. They distinguish the adequacy of later review, the Rule 502(a) disclosure inquiry, and the permissible scope of relief. The draft asks the court to apply *Cheney* and the communications-facts distinction, while leaving the legal strength of those positions for judicial consideration.

Necessary facts alleged

The draft alleges the August response, January protective order, March 25 ruling, March 30 reconsideration denial, April 1 stay denial, and same-day production deadline.

The factual allegations state a chronology and explain urgency. They identify the August response, the January protective order, the March 25 production command, the unsuccessful reconsideration request, and the April 1 production deadline. The draft relies on those descriptions without appending the district orders, public response letter, or preservation papers through which the court could verify them.

Unsupported waiver argument

The draft asserts that no advice was disclosed without attaching or reproducing the response letter needed to assess that assertion.

The public response letter is the alleged waiver event, yet this draft neither attaches it nor quotes its operative language. The petition characterizes the letter as announcing review and remediation without revealing legal advice. Without the document itself, however, a judge cannot compare the public words with that characterization or determine what information was actually disclosed.

Missing essential order

The March 25 categorical-waiver and production provisions are not attached, quoted, or otherwise provided as essential material.

Rule 21 requires the petition to include parts of the record essential to understanding the matters set forth. This draft omits the categorical-waiver paragraph and the command requiring complete production. Merely naming a discovery order leaves its scope and deadline unverifiable and prevents the court from comparing the requested writ with the language it would alter.

Missing preservation record

The reconsideration denial and district-stay denial are absent, leaving the court unable to verify exhaustion and timing.

The draft says relief was sought below but provides neither the reconsideration denial nor the district-stay denial. That prevents confirmation of the preservation history and the live production clock. Supplying those identified materials would permit review of the chronology without requiring the clerk to adjudicate Cheney's adequacy or appropriateness elements.

Mandamus reasons stated

The draft addresses each Cheney element and links the claimed absence of adequate review, waiver error, and narrow remedy to its alleged chronology.

The reasons remain difficult to evaluate because the essential order, letter, and preservation record are absent. The petition states a legal theory and requested remedy, but those assertions cannot substitute for the materials needed to test them. Supplying those papers would permit judicial assessment without predetermining whether the demanding mandamus standard is satisfied.

No service showing

The package contains no proof of service on Calder and does not identify a valid service event.

Rule 25 service is not established by naming Calder in the draft. No certificate identifies a method, recipient, or completion date, and the package contains no proof that Calder received it. The absence of a certificate leaves the clerk unable to verify service from the papers tendered with this submission.

No trial-judge copy certification

The draft ends without certifying delivery to the trial judge and without an essential-materials index; it cannot be accepted as conforming.

Rule 21 also requires providing a copy to the trial judge, and this draft contains no such certification. Its last page provides neither that statement nor an essential-materials index. The package therefore ends without showing delivery to the originating judge, service on Calder, or inclusion of the record materials needed to understand the requested writ.

All people, entities, events, documents, and identifiers in this source are fictional. Nothing here is legal advice or a filing in any real court.